

Jamadar Singh v. State of U.P.

Allahabad High Court · Division Bench · 9 March 2016 · Writ-C No. 10912 of 2016 · **Writ disposed; petitioner relegated to clause 6.5 before Executive Engineer.**

HEADNOTE

A writ challenging an electricity bill is not entertained when clause 6.5 of the Electricity Supply Code, 2005 affords an adequate remedy before the Executive Engineer. The petition is disposed of with liberty to invoke that forum, which shall decide in accordance with law.

FACTUAL SUMMARY

Jamadar Singh petitioned the Allahabad High Court against a demand in the electricity bill dated 12 February 2016. Counsel for the petitioner, the State, and the distribution licensee (respondents 2 to 4) were heard. The Court did not examine the merits of the billed demand. It noted an adequate remedy of approaching the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, and disposed of the writ with liberty to do so.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A writ challenging a billed demand is disposed of where clause 6.5 of the Electricity Supply Code, 2005 affords an adequate remedy before the Executive Engineer; the consumer may approach that authority, which shall take an appropriate decision in accordance with law. ¶ 1

FLAG Court called clause 6.5 an 'appeal'; 6.5 is the billing objection to the Executive Engineer.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND IN THE BILL DATED 12.2.2016

¶ 1